

In T 98/19 the appellants (opponents) requested that the board examine the issue of double patenting of its own motion. The board did not accede to the request. The board held that double patenting did not constitute a ground for opposition, in line with T 936/04. In the case in hand, the patent in suit had not been amended during the opposition proceedings.

In G 4/19 (OJ 2022, A24) the Enlarged Board stated that the reference to Art. 97(2) EPC in the referred question 1 made it clear that this question was restricted to the applicability of the prohibition during substantive examination proceedings under Art. 94 EPC before the examining division.

III. RULES COMMON TO ALL PROCEEDINGS BEFORE THE EPO

A. The principle of the protection of legitimate expectations

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1. Introduction

The principle of the protection of legitimate expectations is a general principle well established in European Union law and generally recognised in the EPC contracting states and board of appeal case law (G 2/97, OJ 1999, 123; see also R 4/09). Its application to procedures before the EPO implies that measures taken by the EPO should not violate the reasonable expectations of parties to such proceedings (G 5/88; G 7/88; G 8/88, OJ 1991, 137). The term "good faith" is also used to describe this concept (J 10/84, OJ 1985, 71; J 38/97; J 19/13; J 19/16).

The protection of the legitimate expectations of users of the European patent system has two main principles. It requires that the user must not suffer a disadvantage as a result of having relied on erroneous information or a misleading communication received from the EPO (see in this chapter III.A.3). It also requires the EPO to warn the applicant of any loss of right if such a warning can be expected in good faith. This presupposes that the deficiency can be readily identified by the EPO (see in this chapter III.A.4).

Users of the European patent system, who are parties in proceedings before the EPO, must also act in good faith (G 2/97, R 4/09, T 861/12). An alleged violation of the principle of the protection of legitimate expectations is in itself not a ground for a petition for review under Art. 112a EPC (R 13/11, R 1/16).

On reimbursement of the appeal fee due to a violation of the principle of protection of legitimate expectations see chapter V.A.11.14.

2. Applicability of the principle of the protection of legitimate expectations

The principle of the protection of legitimate expectations applies to all procedural actions – whether formal or informal – taken by EPO employees vis-à-vis parties to proceedings (T 160/92, OJ 1995, 35; see also T 343/95; T 460/95 of 16 July 1996; T 428/98, OJ 2001, 494).

It applies to both ex parte and inter partes proceedings (T 923/95).

The requirements in connection with the principle of good faith to be observed by the EPO are the same vis-à-vis all parties involved in proceedings before the EPO, be they applicants, patent proprietors or opponents (T 161/96, OJ 1999, 331, see also J 12/94).

The principle of the protection of legitimate expectations also applies to acts performed by other authorities concerned in Euro-PCT proceedings during the international phase such as the US Patent Office acting as receiving Office or as International Preliminary Examining Authority (J 13/03). It applies also to the conduct of national authorities when dealing with European patent applications filed with them under Art. 75(1)(b) EPC (J 34/03). It can also apply in situations in which, while there is no erroneous information from the EPO, the outcome is the same in that a party receives erroneous information as a result of another party's actions (see T 353/18, in which the respondent had mistakenly filed differing clean and annotated versions of the claim).

The principle of legitimate expectations only protects parties from disadvantageous procedural consequences of the omission of procedural steps, in relying on erroneous information from the EPO. It has no bearing on substantive law and cannot render patentable what otherwise would not be. This applies, in particular, when the information – even if it were wrong – was issued by a department of the EPO that was not competent to examine patentability (T 2239/15).

2.1. Sources of legitimate expectations

Sources of legitimate expectations include information provided by the EPO in individual cases (e.g. in the form of communications to the party), information contained in official statements of general applicability and published by the EPO (e.g. the Guidelines and the Official Journal), established practice of departments of the EPO, and decisions taken by the Enlarged Board because of its special role (see J 25/95, J 13/05; see also T 905/90, OJ 1994, 306, Corr. 556). The case law of the boards of appeal may also be a source of legitimate expectation, in particular, if it is established case law which has become enshrined in the consistent practice of the department of first instance (see J 27/94, OJ 1995, 831; see also in this chapter III.A.6.). Courtesy services provided by the EPO may also be a source of legitimate expectation (see J 1/89, OJ 1992, 17; see also in this chapter III.A.3.2.).

2.2. Limits of the legitimate expectations principle

2.2.1 Knowledge of the relevant legal provisions and the case law

Parties to proceedings before the EPO – and their representatives – are expected to know the relevant provisions of the EPC, even when such provisions were intricate (J 27/92, OJ 1995, 288; T 578/14; J 10/17; J 1/19), as well as all notices published by the EPO which are relevant to patent practice (T 267/08). In general, the parties to EPO proceedings are presumed to know the law relating to the EPC, including the relevant decisions of the boards of appeal (R 17/09).

The board decided in J 17/98 (OJ 2000, 399) that the principle of protection of legitimate expectations according to which communications of the EPO, including official forms, must be clear and unambiguous, did not extend so far as to require comprehensive legal advice to be contained in such forms. While forms must be clear and unambiguous, they need not contain detailed explanations of the law. This was especially true for legal issues which directly follow from the provisions of the EPC (see also T 778/00, OJ 2001, 554).

The board decided in J 5/02 that it was not a violation of the principle of the protection of legitimate expectations if the EPO provided a professional representative with incorrect information on the basis of which he concluded that the relevant legal provisions – in this case Art. 122 EPC 1973 – were no longer applicable. If he did not realise the information was incorrect, he was guilty of fundamentally inexcusable ignorance of the law; if he did realise it was incorrect, he was not misled.